though they did not produce a viable alternative map that met the State's avowedly partisan goals. Contra, *id.*, at 34–35.

Texas has also made a strong showing of irreparable harm and that the equities and public interest favor it. "This Court has repeatedly emphasized that lower federal courts should ordinarily not alter the election rules on the eve of an election." *Republican National Committee* v. *Democratic National Committee*, 589 U. S. 423, 424 (2020) (*per curiam*). The District Court violated that rule here. The District Court improperly inserted itself into an active primary campaign, causing much confusion and upsetting the delicate federal-state balance in elections.

The application for stay presented to JUSTICE ALITO and by him referred to the Court is granted. The November 18, 2025 order entered by the United States District Court for the Western District of Texas, case No. 3:21–cv–259, is stayed pending the timely filing of an appeal in this Court. Should a notice of appeal and jurisdictional statement be timely filed, this order shall remain in effect pending this Court's action on the appeal. If the appeal is dismissed, or the judgment is affirmed, this order will terminate automatically. In the event that jurisdiction is noted or postponed, this order will remain in effect pending the sending down of the judgment of this Court.

JUSTICE ALITO, with whom JUSTICE THOMAS and JUSTICE GORSUCH join, concurring in the grant of the application for stay.

I join the order issued by the Court. Texas needs certainty on which map will govern the 2026 midterm elections, so I will not delay the Court's order by writing a detailed response to each of the dissent's arguments. Instead, I offer two short points which for me are decisive.

First, the dissent does not dispute—because it is indisputable—that the impetus for the adoption of the Texas

map (like the map subsequently adopted in California) was partisan advantage pure and simple.

Second, the clear-error standard of review does not apply here because the "'trial court base[d] its findings upon a mistaken impression of applicable legal principles.'" *Alexander* v. *South Carolina State Conference of the NAACP*, 602 U. S. 1, 18 (2024). Because of the correlation between race and partisan preference, litigants can easily use claims of racial gerrymandering for partisan ends. *Cooper* v. *Harris*, 581 U. S. 285, 335 (2017) (ALITO, J., concurring in judgment in part and dissenting in part). To prevent this, our precedents place the burden on the challengers "to disentangle race and politics." *Alexander*, 602 U. S., at 6. Thus, when the asserted reason for a map is political, it is critical for challengers to produce an alternative map that serves the State's allegedly partisan aim just as well as the map the State adopted. *Id*., at 34; *Easley* v. *Cromartie*, 532 U. S. 234, 258 (2001). Although respondents' experts could have easily produced such a map if that were possible, they did not, giving rise to a strong inference that the State's map was indeed based on partisanship, not race. Neither the duration of the District Court's hearing nor the length of its majority opinion provides an excuse for failing to apply the correct legal standards as set out clearly in our case law.